



Appeal Decision

Site visit held on 19 August 2026

by R Kent BA (Hons) MTP DipM MRTPI

an Inspector appointed by the Secretary of State

Decision date: 09 September 2026

Appeal Ref: 6006240

The Old House, Lane to The Old House, Sheldon, Devon EX14 4QR

- The appeal is made under section 20 of the Planning (Listed Buildings and Conservation Areas) Act 1990 (as amended) against a refusal to grant listed building consent.
 - The appeal is made by Graham Tucker against the decision of East Devon District Council.
 - The application Ref is 25/2102/LBC.
 - The works proposed are described as ‘Addition of 13 solar panels to the existing roof space as indicated on drawing GT2/EDDC/P2’.
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Decision

1. The appeal is allowed and listed building consent is granted for the addition of 13 solar panels to the existing roof space at The Old House, Lane to The Old House, Sheldon, Devon EX14 4QR in accordance with the terms of the application Ref 25/2102/LBC and the plans submitted with it subject to the following condition:
 - 1) The works authorised by this consent shall begin not later than 3 years from the date of this consent.

Preliminary Matters

2. The site location in the heading and formal decision above is taken from the application form for listed building consent. The listed building is named in the Historic England national heritage list for England as the ‘Old Farmhouse Approximately 30 Metres South East of Hill Farmhouse’¹. In the interests of brevity, I have used the abbreviated name, Old Farmhouse, in this decision.
3. Even though one of the submitted plans, drawing plan GT2/EDDC/P2 was referred to in the description of the proposal on the application form, it is a requirement that the works be carried out in accordance with all the submitted plans. Therefore I have not expressly referred to that single plan in the description of the works in my formal decision in paragraph 1 above.
4. On 17 August 2026 a new National Planning Policy Framework (the Framework) was published. The Council and the appellants have had the opportunity to make comments on the new Framework in so far as it relates to this appeal. I have taken account of the 2026 Framework and the comments which were made on it.
5. As the appeal relates to a listed building consent I have had particular regard to section 16(2) of the Planning (Listed Buildings and Conservation Areas) Act 1990 (the Act).

¹ Official List Entry Number: 1097988. Date first listed 27 January 1989.

Main Issue

6. The main issue is whether the proposed works would preserve the Grade II listed building or any features of special architectural and historic interest which it possesses.

Reasons

7. The grade II listed Old Farmhouse dates from the early to mid-16th century with later improvements made in the 16th and 17th centuries. Further modernisation took place in the late 19th and 20th centuries. Whilst described in the official list entry as an '*unmodernized but dilapidated farmhouse*', I saw on my visit that it is now occupied as a dwelling with modern facilities, rooms in the roofspace and an enclosed, attached garage at its western end.
8. An archive photograph of the south eastern elevation of the building attached to the official list entry indicates that part of the building at one time had a thatched roof. However, the appellant's Heritage Statement indicates that this was replaced with the current roof which is thought to date from the late 1980s. The Council describes the existing roof as being covered in '*modern artificial slates*'. The evidence also indicates that much of the lower end of the building was rebuilt in the 20th century. Rooflights and upper floor windows were also later additions.
9. Internally the building retains its historic, small 3 room layout and through passage on the ground floor where internal timbers remain visible. Whilst some of the window positions in the south eastern elevation of the building reflect those shown in the archive photograph, others are later additions. The exterior of the building has relatively low significance due to extensive alterations and interventions in the past. Therefore, for the purposes of this appeal, the building derives its significance principally from its historic, internal arrangement.
10. The 13 proposed solar panels would be situated in two separate blocks at either end of the south east facing, 1980s roof slope. A block of 5 panels at the eastern end of the building would wrap around two sides of an existing rooflight. The second block of 8 would be at the western end on the lower, single-storey part of the roof over the garage. As the single storey element is lower than the main part of the roof, it appears subordinate to it. Each of the 30mm deep, black rectangular panels would be positioned on a rail with roof hooks and brackets connecting them to the batten's supporting the existing roof. This means they would sit above the plane of the existing roof slope.
11. The works to attach the panels to the roof would not affect the historic fabric of the building due to the roof being a late 20th century construction. As the proposed works are external, nor would they harm any of the internal features of special architectural or historic interest from which the heritage asset derives its significance. Nevertheless, the panels would form further modern additions to the building at either end of it. As a result of their utilitarian appearance, they would contribute to the gradual erosion of the historic character of the building as a result of the cumulative effect of the alterations and additions which have taken place to it over time.
12. The roof of the Old Farmhouse on which the solar panels would be sited, extends across much of the upper part of the garden. Whilst 8 of the panels would be sited on the lower, more subordinate part of the roof, the position, scale and form of the

two storey part of the building means that that part of the roof is one of its principal roof slopes.

13. However, that roof slope faces towards the garden which is well landscaped. Whilst the solar panels would be visible from the garden, the landscaped grounds, sloping topography and mature trees along the south western boundary means that the roof is not prominent in views from elsewhere, including from the road.
14. Therefore, having regard to the recent Historic England Advice Note 18 (HEAN 18)², the proposed panels would be on a roof slope '*of less prominence*' which HEAN 18 indicates will generally provide a more acceptable place to install solar panels. The proposed use of the lower, subordinate part of the roof to site 8 of the panels is also compatible with the advice in HEAN 18.
15. The relatively recent construction of the roof and the absence of harm to the historic fabric of the building, coupled with the fact that the roof is not in a prominent location, means that the proposal would result in limited harm to the significance of the heritage asset.
16. Policy EN9 of the East Devon Local Plan 2016 (EDLP) and the Framework's national decision-making policy (NDMP) HE6 require that this should be weighed against the public benefits of the proposal. The proposal would have the benefit of enabling the occupants of the dwelling to switch to solar energy and thereby reduce the carbon footprint of the Old Farmhouse, including through the charging of an electric vehicle. It would also have the public benefit of enabling unused electricity generated by the solar panels to be returned to the National Grid. The proposed use of sustainable energy is consistent with the Government's objectives for meeting the challenge of climate change.
17. Whilst the proposals would clearly benefit the appellant, in my judgement, enabling energy efficiency and transferring unused electricity to the National Grid would also be a substantial public benefit. This is also recognised by NDMP HE6 which states that enabling energy efficiency can be an important public benefit. The benefit of improving the energy efficiency of the existing building attracts substantial weight in favour of the proposal in accordance with NDMP CC2 paragraph 2.
18. The limited harm which I have identified is nevertheless a matter of considerable importance and weight and I have given substantial weight to the asset's conservation. However, taking into account the advice in HEAN 18 that the installation of solar panels on roof slopes of less prominence, will generally be acceptable even if they would be visible, I am satisfied that the public benefits resulting from the proposal provide clear and convincing justification for the limited harm which would be caused by it.
19. As a result the proposal would not conflict with EDLP policy EN9 regarding development affecting a designated heritage asset. Whilst EDLP policy EN8 is also referred to in the reason for refusal, this relates to the requirement for the applicant to establish the significance of the heritage asset through a proportionate but systematic assessment. In my judgement, the Heritage Statement submitted by the appellant met this requirement and I have not been provided with any

² Historic England 2026 'Adapting Historic Buildings for Energy and Carbon Efficiency:' Historic England Advice Note 18 (HEAN 18)

compelling evidence to the contrary. The proposal therefore does not conflict with EDLP policy EN8.

20. Although HEAN 18 advises that mounting panels on land associated with a listed building might be generally preferable to installation on the main building, this is not the proposal before me. Notwithstanding this, the Heritage Statement indicates that this option was considered and discounted partly due to the shading effect of the mature trees and the effect on the significance of the listed building as a result of development within its setting.
21. Whilst it is not part of the adopted development plan, for the reasons already given above, nor would the proposal conflict with Strategic Policy HE01 or policy HE02 of the draft East Devon Local Plan 2020 to 2042³ regarding proposals to improve the energy efficiency of historic buildings and conserve listed buildings.
22. Having full regard to the statutory requirements of sections 16(2) of the Act, I therefore conclude that the public benefits would outweigh the limited harm to the designated heritage asset. The proposal would accord with the Act and relevant NDMPs in the Framework.

Conditions

23. The Council has not suggested any conditions for me to consider in the event that the appeal is allowed. Nevertheless, having had regard to section 17 of the Act, I am satisfied that a standard commencement condition is necessary to provide certainty.

Conclusion

24. For the reasons given above the appeal should be allowed.

R Kent

INSPECTOR

³ East Devon Local Plan 2020 to 2042 Second Regulation 19 Publication Draft November 2025